

STATE OF NEW YORK

8613--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. DINOWITZ, LEVENBERG, REYES, SHIMSKY -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law and the tax law, in relation to requiring certain licensees to provide drink drug testing devices to protect consumers from drink spiking

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 100 of the alcoholic beverage control law is
2 amended by adding a new subdivision 10 to read as follows:

3 10. A covered licensee shall not serve alcoholic beverages on licensed
4 premises unless a drink drug testing device is readily available to be
5 supplied to its customers upon request.

6 (a) For the purposes of this subdivision, a drink drug testing device
7 is a device that: (i) utilizes test strips to detect the presence of
8 drugs in alcoholic beverages;

9 (ii) is capable of detecting the presence of at least ten controlled
10 substances (as defined in 21 U.S.C § 802.6);

11 (iii) is capable of detecting at least two drugs listed as date rape
12 drugs (as defined in 21 U.S.C. §841.G.2A);

13 (iv) is capable of providing results in no more than five minutes
14 after the alcoholic beverage is applied to the device; and

15 (v) is manufactured in the United States or its territories.

16 (b) For the purposes of this subdivision, a covered licensee means an
17 entity licensed under section fifty-five, fifty-five-a, sixty-four,
18 sixty-four-a, sixty-four-d, eighty-one or eighty-one-a of this chapter.

19 (c) The covered licensee shall post a notice in a prominent and
20 conspicuous location that informs customers of the availability of drink
21 drug testing devices.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (d) The covered licensee shall not be held liable for a defective test
2 or inaccurate test result, including, but not limited to, a false posi-
3 tive or false negative test result.

4 (e) The covered licensee shall provide drink drug testing devices at
5 no cost to the customer.

6 (f) The covered licensee shall ensure that all testing devices offered
7 to customers have not exceeded their expiration date or recommended
8 period of use, according to the product label, product packaging, or
9 otherwise recommended by the manufacturer.

10 § 2. The tax law is amended by adding a new section 210-D to read as
11 follows:

12 § 210-D. Drink drug testing devices. Notwithstanding any other
13 provision of law to the contrary, for purposes of this chapter, any
14 amount paid or incurred by an entity licensed under section fifty-five,
15 fifty-five-a, sixty-four, sixty-four-a, sixty-four-d, eighty-one or
16 eighty-one-a of the alcoholic beverage control law to make available a
17 drink drug testing device to consumers pursuant to subdivision ten of
18 section one hundred of the alcoholic beverage control law shall be
19 treated as an ordinary and necessary business expense and shall be
20 deductible when computing taxable income.

21 § 3. This act shall take effect on the ninetieth day after it shall
22 have become a law.